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Tentative Ruling

DEFENDANT'S

(SHI-III MG DEV GP, LLC dba MERRILL GARDENS AT WEST COVINA) NOTICE OF PETITION AND PETITION TO COMPEL BINDING ARBITRATION AND TO STAY THE SUPERIOR COURT MATTER PENDING THE HEARING ON THE PETITION is GRANTED; a proposed order has been filed.

Background

This

is an elder abuse case involving a skilled nursing facility/assisted living facility. Plaintiffs PATRICIA HICKS ("decedent") by and through her Successor-in-Interest, Eric Bencini and ERIC BENCINI, Individually, allege the following against Defendants SHI-III MG DEV GP, LLC dba Merrill Gardens at West Covina and MERRILL GARDENS, LLC dba Merrill Gardens at West Covina (collectively, "Merrill") and SKILLED SAN DIMAS, LLC dba Bayshire San Dimas Post Acute ("Bayshire") (and Nominal Defendant, Carolyn Rodgers)[1]: In November 2021, the decedent was admitted to Merrill where she had a known fall risk. Merrill, however, "failed to implement and enforce appropriate safety interventions," and, ultimately, in June 2025, "[t]he wheelchair tipped over, causing her to fall violently onto her side and strike her head, resulting in a catastrophic comminuted periprosthetic fracture of the proximal right femur, requiring emergency hospitalization." On June 20, 2025, following hospitalization, the decedent was then discharged to Bayshire for rehabilitation and skilled nursing care. However, Bayshire failed to provide adequate nursing care, monitoring, and timely medical intervention. She was then transferred to an ICU where she died on July 3, 2025, "less than three

weeks after her fall and less than three weeks after BAYSHIRE assumed her care.” (See Complaint generally.)

On

December 29, 2025, Plaintiffs filed suit for:

1.

Elder Abuse

2.

Negligence

3.

Violation of Residential Rights and

4.

Wrongful Death

On

February 20, 2026, Merrill filed the instant motion.

On

May 12, 2026, Bayshire filed its answer.

On

May 26, 2026, Plaintiffs filed their opposition to the motion.

On

June 1, 2026, Merrill filed its reply.

On

June 8, 2026, the court asked for supplemental briefing.

The

parties have filed their respective briefs.

Discussion

At

the outset, the court sought supplemental briefing on the “specific issue” of whether Bencini can be

compelled to arbitrate his wrongful death claim. That was because Plaintiff advanced a host of authority holding that because wrongful death claims belong independently to the heirs, non-signatory heirs cannot ordinarily be compelled to arbitrate absent their own agreement to do so, and Defendant failed to address those cases in reply. In their supplemental reply, Defendant concedes that point. Accordingly, the threshold issue is whether the court may stay arbitration under CCP section CCP 1281.2(c) which affords a trial court the discretion to deny arbitration when there would be a risk of inconsistent rulings (i.e., if the survival claims were arbitrated while wrongful death claims proceeded in court, both forums would necessarily determine overlapping factual and legal issues, creating a substantial risk of inconsistent rulings). For reasons to be discussed below, as the FAA exclusively covers, the court lacks discretions to deny the motion.

Before

engaging in that argument, the court will address Plaintiff's large dedication to issue of authentication.

Authentication

Plaintiffs

argue that Defendants failed to authenticate and establish the existence of a valid arbitration agreement through competent admissible evidence. Not at all. Defendant has met its initial burden of establishing that an arbitration agreement exists as Defendant has provided the agreement and set forth the relevant terms verbatim in the motion. (See Code of Civil Procedure § 1281.2, California Rules of Court, rule 3.1330.) As noted in reply, *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215 controls the issue and the *Condee* court has made clear that a defendant need not establish the agreement as admissible evidence. "A plain reading of the statute indicates that as a preliminary matter the court is only required to make a finding of the agreement's existence, not an evidentiary determination of its validity. [¶]...Petitioner need only allege the existence of an agreement....Once the petitioners had alleged that the agreement exists, the burden shifted to respondents to prove the falsity of the purported agreement." (Id. at pp. 218-219.) To the extent that Plaintiffs rely upon *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047 to support their proposition that "Defendant has not met its burden," that case in apposite. (The reply does not address *Espejo*.) *Espejo* involved an electronic

signature. That detail is of significant import as authenticating electronic signatures involves complexities and details not at issue with handwritten signatures such as creating unique user IDs and confidential passwords. (*Garcia v. Stoneledge Furniture, LLC* (2024) 102 Cal.App.5th 41.) Here, the agreement shows that decedent signed her name (i.e., non-electronic signature). In any event, as argued in reply, Plaintiffs have not submitted a declaration challenging that the signature on the Agreement.

Thus, as Defendant has met its initial burden and Plaintiffs failed to meet theirs “to prove the falsity of the purported agreement,” the court does not deny the motion on said grounds and overrules Plaintiffs’ evidentiary objections. (*Condee, supra.*)

The
Agreement

The relevant
text of the arbitration agreement is as follows:

Plaintiffs’ principal position is that under a handful of cases--*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, *Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University*, 489 U.S. 468, *Mount Diablo Medical Center v. Health Net of California, Inc.* (2002) 101 Cal.App.4th 711, and *Valencia v. Smyth* (2010) 185 Cal.App.4th 153, this Court retains its statutory discretion under CCP Section 1281.2(c).[2]

But those cases are distinguishable on a significant point that neither party meaningfully confronts. Unlike the seminal cases, here, there is no choice-of-law provision and absent that, there can be no question that California’s rules of arbitration should not be interpreted into the contract.

Cronus: In *Cronus*, the arbitration clause specified that “The designation of a situs or specifically a governing law for this agreement or the arbitration shall not be deemed an election to preclude application of the [FAA], if it would be applicable.” The agreements also contained a choice-of-law clause providing that “[t]his agreement shall be construed and enforced in accordance with and governed by the laws of the State of California, without giving effect to the conflict of laws provisions thereof.”

(Cronus, 35 Cal.4th at p. 381.) In fact, in Cronus, “The parties seem to agree that the broad choice-of-law provision generally incorporates California law, including the California Arbitration Act (CAA) (§ 1280 et. seq.), of which section 1281.2(c) is a part.” (Id., at p. 387, emphasis added.)

Volt: In Volt, the contract also contained a choice-of-law clause providing that “[t]he Contract shall be governed by the law of the place where the Project is located.” The location there was in California as the project was on the Standard campus and the dispute developed over a construction contract under which Volt was to install a system of electrical conduits on the Stanford campus. (Volt, supra, 489 U.S. at p. 471.)

Mount

Diablo: There, the agreement also contained a separate provision concerning choice of law, which read in relevant part: “The validity, construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of California.” (101 Cal.App.4th at p. 716.)

Valencia: In Valencia, the parties’ agreement was replete with references to California law e.g., the “arbitrator [] shall render an award in accordance with substantive California Law”; “the parties shall have the right to discovery in accordance with California Code of Civil Procedure § 1283.05”; “In all other respects, the arbitration shall be conducted in accordance with Title 9 of Part III of the California Code of Civil Procedure”; “YOU MAY BE COMPELLED TO ARBITRATE UNDER THE AUTHORITY OF THE CALIFORNIA CODE OF CIVIL PROCEDURE.” (185 Cal.App.4th at pp. 159-160.)

So, the presence of the choice of law provision is what created the issues of interpretation in those cases. (See e.g., Note, An Unnecessary Choice of Law: Volt, Mastrobuono, and Federal Arbitration Act Preemption (2002) 115 Harv. L.Rev. 2250, 2250-2251 [that “struggle[] to determine whether these clauses were intended to supply only the general substantive law of the selected forum, or instead to supply both that forum's substantive law and its arbitration rules”]; see also Volt, supra, 489 U.S. 468 at p. 476 [“Interpreting a choice-of-law clause to make applicable state rules governing the conduct

of arbitration—rules which are manifestly designed to encourage resort to the arbitral process—simply does not offend the rule of liberal construction set forth in *Moses*

H. Cone, nor

does it offend any other policy embodied in the FAA.”], emphasis added.)

“Long story, short: if you want certain

rules to apply to the handling of your arbitration, the contract must say so clearly and unmistakably. Otherwise, the Federal Arbitration Act (“FAA”) will apply.”

(*Gulfstream Aerospace Corp. v. Ocetip Aviation 1 Pty*

Ltd., 31 F.4th 1323 (11th

Cir. 2022).) To subscribe to Plaintiffs’ position that the FAA does not govern would

require this court to do undermine the very purpose behind the FAA which was to

“overrule the judiciary’s longstanding refusal to enforce agreements to

arbitrate.” (*Cronus*, *supra*, 35 Cal.4th 376, 383.)

Conclusion

Based

on the foregoing, the court agrees with Defendant that this court lacks to discretion to apply CCP 1281.2(c) to deny the petition in light of the agreement invoking the FAA.

[1] According to the

complaint, Bencini is the beneficiary of decedent’s trust (P2); according to his declaration filed on 1/30/26, Bencini and decedent were close friends. Rodgers

is the “is the sister and surviving lawful heir of decedent HICKS and is

therefore, named herein as an indispensable party pursuant to California Code of Civil Procedure §382.” (PP2, 3.) They both bring their individual wrongful death claims. (PP2, 3.)

[2] Section 1281.2(c) requires a court to

order arbitration upon petition by one of the parties to an arbitration

agreement, “unless [the court] determines that: [¶] ... [¶] (c) A party to the

arbitration agreement is also a party to a pending court action ... with a

third party, arising out of the same transaction or series of related

transactions and there is a possibility of conflicting rulings on a common

issue of law or fact.” If the court makes such a determination, it: “(1) may

refuse to enforce the arbitration agreement and may order intervention or

joinder of all parties in a single action ...; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action ... pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action....” (Defendant does not appear to strongly dispute that this case comes within the exception to the general rule of arbitration enforcement specified in section 1281.2(c).) By contrast, the FAA contains no such exceptions or carveouts. By its plain language, Section

3 of the FAA states, in relevant part, that “shall on application of one of the parties stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement, providing the applicant for the stay is not in default in proceeding with such arbitration.”